

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 12, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER FOLLOWING STATUS CONFERENCE

On June 10, 2026, I issued an order directing the parties to appear at a status conference via Teams on June 12, 2026, at 10 a.m. EDT. The conference was necessary to discuss a discovery dispute arising from Respondents' notices seeking to depose two of Complainant's principals on July 11 and 12, 2026, shortly before the discovery deadline of June 13, 2026, and the effective date of the withdrawal of Complainant's counsel on June 14, 2026, pursuant to the Order on Motion to Withdraw dated June 8, 2026. (Dkt. 22.) Respondents seek to depose Anna Farkas and Tony Hopkins, both of whom are officers and principals of Complainant, residing in Spain and Denmark, respectively. The parties' positions with respect to the discovery dispute are set forth fully in Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order and Appendix to Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order filed June 10, 2026 (Dkt. 23 and 24); and Respondents' Opposition to Complainant's Motion to Quash Notices of Deposition or in the Alternative, for a Protective Order filed June 11, 2026.

Both parties appeared and participated at the status conference during which an audio recording and transcript were made on Teams. The participants included: Christopher R. Nolan, Esq. counsel for Complainant; Tony Hopkins, officer and authorized representative of Complainant; Daniel Bang, Esq. counsel for Respondents, and Michael Kohler, Esq., counsel for Respondents. (Dkt. 21).

At the status conference, the following relevant events occurred:

1. Attorney Bang stated that that Respondents seek to depose both Anna Farkas and Tony Hopkins in their individual capacity and not in their representative capacity.
2. Attorney Nolan stated that Anna Farkas and Tony Hopkins were the only two persons identified as having relevant knowledge in response to written discovery served by the parties.

3. The parties agree that Anna Farkas resides in Spain, that Tony Hopkins resides in Denmark, and that both are officers and principals of Complainant.

4. The parties agree to extend the current discovery deadlines by 30 days or to the date at which the depositions of Anna Farkas and Tony Hopkins are concluded, whichever is later, and to extend the remaining briefing deadlines accordingly.

5. Tony Hopkins agreed that Complainant consents to remote depositions of both Anna Farkas and Tony Hopkins within 30 days and to promptly provide Respondent's counsel with blackout dates when they are unavailable during that period.

6. The parties agree that within seven days of the status conference they will agree to dates upon which the depositions of both Anna Farkas and Tony Hopkins will be taken.

7. Attorney Nolan agreed to represent Complainant solely for purposes of defending the depositions of Anna Farkas and Tony Hopkins, and any ancillary matters related to or arising from those depositions, including but not limited to scheduling, discovery disputes, and claims of privilege.

Upon review of the pending motion and opposition and the statements made by the parties at the status conference, I find that the notice of deposition of Anna Farkas and Tony Hopkins were timely served within the applicable discovery period. Despite that the notices were procedurally defective in that they provide for remote deposition of foreign nationals without obtaining a court order or written stipulation from the opposing party or satisfaction of the requirements for depositions in a foreign country in accordance with 46 C.F.R. § 502.142(b), I find that the depositions are reasonable and that good cause exists to extend the discovery deadline to allow them to be taken. The record establishes that both witness are officers of Complainant who were identified as persons with knowledge in written discovery. The record also establishes that counsel for both parties discussed and were willing to agree to a 30 day extension of discovery during the good faith conference to discuss attorney Nolan's motion to withdraw as counsel, but that no motion for extension was filed because Complainant refused to consent to an extension. For this reason, I find that the actions of Respondents' counsel in noticing the depositions with short notice upon learning that no 30 day extension would be requested is reasonable. Due process and the need for a fully developed record require that the depositions of the two main witnesses with relevant knowledge be deposed in advance of briefing.

Accordingly, it is

ORDERED that Complainant shall formalize the agreement made on the record to allow remote depositions of both Anna Farkas and Tony Hopkins by entering into a written stipulation to that effect no later than **Friday, June 19, 2026**, with the stipulation document to be prepared by counsel for Respondents and transmitted to Tony Hopkins for execution and return to Respondents' counsel; it is further

ORDERED that no later than **Friday, June 19, 2026**, the parties shall agree to mutually convenient dates upon which the depositions of Anna Farkas and Tony Hopkins will be conducted; it is further

ORDERED that Respondents shall re-notice the depositions of both Anna Farkas and Tony Hopkins to be taken remotely based on the written stipulation of Complainant, it is further

ORDERED that in the event Complainant does not timely stipulate in writing to remote depositions, that Complainant shall produce both Anna Farkas and Tony Hopkins for deposition at the offices of attorney Nolan in New York on the dates agreed to by counsel, and Respondents shall re-notice the depositions accordingly. It is further

ORDERED that the June 8 Order on Motion to Withdraw is modified to provide that the Firm shall continue to represent Complainant as limited herein until **July 13, 2026**, or until the depositions of Anna Farkas and Tony Hopkins are concluded, whichever is later. The Firm's representation effective June 14, 2026, is limited to defending the depositions of Anna Farkas and Tony Hopkins, and any ancillary matters related to or arising from those depositions, including but not limited to scheduling, discovery disputes, and claims of privilege. This order is without prejudice to Complainant retaining new counsel who agrees to defend the depositions on the dates agreed to by the parties in lieu of attorney Nolan. It is further

ORDERED that the parties shall follow the following schedule:

June 13, 2026	Close of all discovery other than depositions of Anna Farkas and Tony Hopkins
July 13, 2026	Deadline to depose Anna Farkas and Tony Hopkins
August 13, 2026	Complainant's brief, proposed findings of fact, and appendix
September 14, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
October 24, 2026	Complainant's reply brief and responses to proposed findings of fact

An order disposing of Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order and Respondents' opposition thereto will be entered separately.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2026.06.12 15:11:50 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge